

**Manulife (International) Limited**  
宏利人壽保險(國際)有限公司

Financial Intermediary Agreement – New Capital Investment Entrant Scheme  
新資本投資者入境計劃 – 金融中介機構合約

**THIS AGREEMENT** is made on \_\_\_\_\_  
本合約於\_\_\_\_\_

**BETWEEN:**  
由下列雙方簽訂:

(1) **Manulife (International) Limited** (“Manulife”) whose principal place of business in Hong Kong is at 22/F, Manulife Financial Centre, 223-231 Wai Yip Street, Kwun Tong, Kowloon, Hong Kong; and 宏利人壽保險(國際)有限公司(下稱「宏利」), 在香港的主要營業的地址位於香港九龍觀塘偉業街 223-231 號宏利金融中心 22 樓; 與

(2) [*Where Policyowner is the Scheme Applicant*] Name \_\_\_\_\_ (the “Customer”), holder of Passport Number \_\_\_\_\_ issued by \_\_\_\_\_, [and/or Hong Kong Identity Card Number \_\_\_\_\_]<sup>#</sup> with the New CIES Application Reference Number\* as assigned by the New CIES Office (if available)

姓名 \_\_\_\_\_ (下稱「客戶」), 護照號碼 \_\_\_\_\_ 簽發地 \_\_\_\_\_ [及/或香港身份證號碼 \_\_\_\_\_]<sup>#</sup>, 其由新資本投資者入境計劃辦公室編配的計劃申請編號\*(如有)為 \_\_\_\_\_。

OR

或

[*Where the Policyowner is the Holding Company*] Name \_\_\_\_\_ (the “Customer”), holder of Passport Number \_\_\_\_\_ issued by \_\_\_\_\_ [and/or Hong Kong Identity Card Number \_\_\_\_\_]<sup>#</sup>, with the New CIES Application Reference Number\* as assigned by the New CIES Office (if available)

\_\_\_\_\_ and \_\_\_\_\_ (Name of Customer’s Holding Company)(the “Holding Company”), Holder of Business Registration Certificate Number \_\_\_\_\_。

姓名 \_\_\_\_\_ (下稱「客戶」), 護照號碼 \_\_\_\_\_ 簽發地 \_\_\_\_\_ [及/或香港身份證號碼 \_\_\_\_\_]<sup>#</sup>, 其由新資本投資者入境計劃辦公室編配的計劃申請編號\*(如有)為 \_\_\_\_\_ 及 \_\_\_\_\_ (控股公司名稱) (下稱「控股公司」或「客戶的公司」), 其商業登記證號碼為 \_\_\_\_\_。

*\* If the application reference number is not available upon signing this Agreement, the Customer should provide the reference number to Manulife as soon as possible once the application reference number has been assigned by the New CIES Office.*

*\* 若在簽署本合約時並沒有此計劃申請編號, 客戶應在新資本投資者入境計劃辦公室編配計劃申請編號後儘快向宏利提供此計劃申請編號。*

*# Please delete as appropriate.*

*# 請刪去不適用者。*



## WHEREAS

鑒於

- (1) The Customer is the applicant/entrant under the New Capital Investment Entrant Scheme operated by Invest Hong Kong and Immigration Department(, and has registered or incorporated a Holding Company)<sup>#</sup>.

客戶是由投資推廣署和入境事務處運作的新資本投資者入境計劃的申請人/投資者（，並成立或登記控股公司）<sup>#</sup>。

- (2) The Customer/Holding Company will open a CIES Account (as defined below) for the purpose of purchasing and/or holding Permissible Financial Asset(s) in order to fulfill the relevant requirements under the New CIES.

客戶/控股公司將開設一個資本投資者入境計劃戶口（如下所定義），以購買和/或持有獲許金融資產，以滿足新資本投資者入境計劃的相關要求。

- (3) Manulife is an insurer permitted to carry on Class C business as specified in Part 2 of Schedule 1 under the Insurance Ordinance (Cap. 41 of the Laws of Hong Kong).

宏利是一家獲准根據香港法例第41章《保險業條例》附表1第2部分進行類別C業務的保險公司。

NOW IT IS HEREBY AGREED as follows:

茲達成協議如下：

## 1. DEFINITIONS AND INTERPRETATION

### 定義及解釋

- 1.1 "Approval-in-Principle" means a preliminary and provisional grant of approval in writing given by Director of Immigration to the Customer to enter Hong Kong and/or remain in Hong Kong pursuant to the New Capital Investment Entrant Scheme.

「原則上批准」是指入境事務處處長根據新資本投資者入境計劃，向客戶發出的書面初步和臨時批准，以進入和/或逗留在香港。

"CIES Account" means an account opened by and operated in accordance with the instructions of the Customer/Holding Company at Manulife for the purpose of buying and/or holding Permissible Financial Assets in order to fulfill the relevant requirements under the New Capital Investment Entrant Scheme.

「資本投資者入境計劃戶口」指客戶/客戶的公司為符合資本投資者入境計劃的有關要求而於宏利開立及跟據客戶指示操作以作買入及/或持有獲許金融資產的戶口。

"CIES IP" means the CIES Investment Portfolio, which is set up and managed by the Hong Kong Investment Corporation Limited.

「資本投資者入境計劃投資組合」指由香港投資管理有限公司成立和管理的資本投資者入境計劃投資組合。

"DGIP" means the Direct-General of Investment Promotion of Invest Hong Kong.

「投資推廣署署長」指香港投資推廣署署長。

"Director of Immigration" or "DoI" means the Director of the Immigration Department.

「入境事務處處長」指入境事務處的處長。

"Eligible Policies" means "Manulife Investment Plus 2" or such other investment linked assurance schemes which are underwritten and designated as Eligible Policies by Manulife and accepted by the DGIP and/or Director of Immigration as Eligible Collective Investment Schemes.

「合格保單」指「宏利投資計劃2」或宏利承保和指定為合格保單的及被投資推廣署署長及／或入境事務處處長接受為合資格的集體投資計劃的其他與投資相連的保險計劃。

"Entry Application" means an entry application submitted to DoI for a visa/entry permit to enter Hong Kong and/or remain in Hong Kong for residence under the New Capital Investment Entrant Scheme.

「入境申請」是指根據新資本投資者入境計劃以進入香港及/或逗留在香港居留為目的向入境事務處處長提交的入境簽證/進入許可申請。

"Formal Approval" means a confirmed grant of approval in writing given by the DoI to the Customer to enter Hong Kong and/or remain in Hong Kong pursuant to the New Capital Investment Entrant Scheme.

「正式批准」是指入境事務處處長發出批准申請人依據新資本投資者入境計劃進入香港及/或在香港逗留的書面確認。

"Hong Kong" means the Hong Kong Special Administrative Region of the People's Republic of China.

「香港」指中華人民共和國香港特別行政區。

"HKIC" means the Hong Kong Investment Corporation Limited.

「香港投資管理有限公司」指香港投資管理有限公司。

"Immigration Department" means the Immigration Department of the Hong Kong government.

「入境事務處」指香港政府入境事務處。

"Indemnified Persons" has the meaning ascribed to it in Clause 5.2 of this Agreement.

「受償人」具有本合約第5.2條給予該詞的涵義。

"Insurance Ordinance" means the Insurance Ordinance, Cap. 41 of the laws of Hong Kong.

「保險業條例」指香港法例第41章《保險業條例》。

"Invest Hong Kong" means Invest Hong Kong of the Government of Hong Kong, which is responsible for attracting and facilitating direct investment into Hong Kong.

「投資推廣署」是指香港特別行政區政府的投資推廣署，專責為香港促進外來直接投資的政府部門。

"Manulife Group" means Manulife (International) Limited and its parents, subsidiaries, associates and affiliates.

「宏利集團」指宏利人壽保險(國際)有限公司以及其母公司、子公司、有聯繫者及附屬成員。

"New CIES Office" means the New Capital Investment Entrant Scheme Office under Invest Hong Kong and overseen by DGIP, which is responsible for assessing the financial assets and investment of the Customer as well as monitoring their continuous compliance of the relevant requirements under the New Capital Investment Entrant Scheme.

「新資本投資者入境計劃辦公室」指由投資推廣署署長監督，投資推廣署管轄下的新資本投資者入境計劃辦公室，負責審查客戶的金融資產和投資，以及監察其是否持續符合新資本投資者入境計劃的相關要求。

"PDPO" means the Personal Data (Privacy) Ordinance (Chapter 486 of the Laws of Hong Kong).

「私隱條例」指個人資料(私隱)條例(香港法例第486章)。

"Rules" or "Scheme Rules" means the "Rules for the New Capital Investment Entrant Scheme" published by the DGIP and the Director of Immigration for the purpose of the Scheme, and any amendments, supplements, variations or modifications thereto in force from time to time.

「規則」或「計劃規則」指投資推廣署署長及入境事務處處長為施行計劃而公佈的「新資本投資者入境計劃的規則」，及其任何不時有效之修訂、補充、變更及修改。

"Scheme" means the New Capital Investment Entrant Scheme administered by the DGIP and/or Director of Immigration, which was launched on 1 March 2024, subject to amendments and/or supplements from time to time.

「計劃」指投資推廣署署長及／或入境事務處於二零二四年三月一日推出的新資本投資者入境計劃，以及其不時作出修訂和／或補充。

"Service Provider" has the meaning ascribed to it in Clause 7.2 of this Agreement.

「服務供應商」具有本合約第7.2條給予該詞的涵義。

"Manulife Investment Plus 2" means " Manulife Investment Plus 2", the investment linked assurance scheme underwritten by Manulife.

「宏利投資計劃2」指宏利承保的與投資相連的保險計劃「宏利投資計劃2」。

"Permissible Financial Assets" means the assets in the class of assets as defined and referred to in the Rules as "Permissible financial assets", including equities, debt securities, certificates of deposits, subordinated debt, eligible collective investment schemes and ownership interest in limited partnership funds registered under the Limited Partnership Fund Ordinance (Cap. 637 of the Laws of Hong Kong).

「獲許金融資產」指規則內定義及所述屬於「獲許金融資產」類別的資產，包括股票、債務證券、存款證、後償債項、合資格的集體投資計劃以及根據香港法例第637章《有限合伙基金條例》註冊的有限合伙基金的擁有權利益。

"Working Day" means a day other than a Sunday, a public holiday or a gale warning day or a black rainstorm warning day (both as defined in Section 71(2) of the Interpretation and General Clauses Ordinance (Chapter 1 of the Laws of Hong Kong)).

「工作天」指星期日、公眾假期或烈風警告日或黑色暴雨警告日以外的日子(後兩者的定義與香港法例第一章《釋義及通則條例》第71(2)條的定義相同)。

- 1.2 Unless otherwise specified, capitalised terms used in this Agreement shall bear the same meanings as those defined in the Scheme Rules.

除非另有說明，否則本合約中使用的定義詞彙應具有規則中定義的含義。

- 1.3 The terms and conditions contained in this Agreement have been arranged into separate clauses, paragraphs and headings for convenience or reference only, and shall not affect the construction and interpretation of this Agreement.

本合約的條款與條件安排為獨立條文、段落及標題僅為方便或參考之目的，並不影響本合約的釋義及解釋。

- 1.4 Unless otherwise stated or the context requires,

除另作聲明或上下文義要求外，

- (a) references in this Agreement to Clauses, Sub-clauses, and Schedules are to clauses, sub-clauses, and schedules of this Agreement;

本合約所提及的條款、部份、和附件均指本合約內的條款、部份和附件；

- (b) reference to the singular includes the plural and vice versa;

所提及的單數名詞亦包括其眾數詞義，反之亦然；

- (c) words importing a gender shall include every any gender; and

含任何一種性別之字詞均 包含所有性別；

- (d) references to any law, rules or regulations shall include any other statute, provision of law, rules or regulations in force from time to time modifying, replacing, re-enacting, extending or made pursuant to the first-mentioned law, rules or regulations.

所提及的任何法律、法規或規例應包括其不時的更改、取代、重新制訂、延期或根據前述法律、法規或規例制訂的任何其他有效法律、法規或規例。

## **2. APPOINTMENT**

### **委聘**

- 2.1 With effect from the date of this Agreement and subject to Clause 2.2 below, the Customer/Holding Company appoints Manulife, and Manulife accepts the appointment, as the financial intermediary under the Rules and in accordance with the provisions of this Agreement.

受制於下文第2.2條，客戶/客戶的公司根據本合約的規定委聘宏利作為規則項下的金融中介機構，且宏利接受該等委聘，委聘自本合約生效日起生效。

- 2.2 This Agreement shall not become effective unless and until the Customer/Holding Company has submitted an application for or has subscribed for an Eligible Policy and has agreed to invest in the policy with the minimum amount as required by Manulife.

除非及直至客戶/客戶的公司已向宏利提交合格保單的申請或已與宏利簽署合格保單，以及客戶/客戶的公司已同意投資宏利所要求的最低金額於該保單，本合約不會生效。

- 2.3 The Customer/Holding Company and Manulife agree that the provisions set out in the Schedule to this Agreement shall form part of this Agreement and shall apply to the operation of the CIES Account, and agree that those provisions shall be of the essence of this Agreement and shall prevail in the event of any conflict or inconsistency between those provisions and other terms of this Agreement.

客戶/客戶的公司和宏利同意，本合約附件中所載的特定條文構成本合約的組成部份，並適用於資本投資者入境計劃戶口的運作，並同意該等特定條文是本合約的主要部份，如果該等特定條文和本合約的其他條款之間存在任何衝突或不一致，則以該等特定條文為準。

- 2.4 The Customer/Holding Company acknowledges and agrees that Manulife shall assume no responsibility and shall not be held liable for any loss that the Customer/Holding Company may suffer as a result of investing in, cancelling or surrendering the Eligible Policy(ies) and/or holding any money on behalf of the Customer/Holding Company for the purpose of investing into the CIES IP.

客戶/客戶的公司認知並同意，對於客戶/客戶的公司因投資、取消或退保合格保單及/或代表客戶/客戶的公司保管任何資金用於投入資本投資者入境計劃投資組合而可能遭受的任何損失，宏利無需對此承擔任何責任。

- 2.5 The Customer/Holding Company and Manulife shall acknowledge that the terms and conditions which DGIP may require to be included in the Agreement shall be of the essence of any such agreement (unless DGIP otherwise agrees in writing) and override a different intention arising from or which might otherwise (apart from the Scheme Rules) arise from the provisions of this agreement regarding the appointment of the financial intermediary(ies).

客戶/客戶的公司和宏利將確認投資推廣署署長所規定包括在協議內的條款和條件是該協議的主要部份（除非投資推廣署署長以書面同意另外的安排，則作別論）。此外，如因本協議內關於委聘金融中介機構的條款而產生或在其他情況下（計劃規則除外）可能產生任何不同的用意，則投資推廣署署長所規定的條款和條件將凌駕於該用意之上。

## **3. REPRESENTATIONS AND WARRANTIES**

### **聲明及保證**

- 3.1 The Customer/Holding Company hereby warrants, represents and undertakes to Manulife the following: 客戶/客戶的公司在此向宏利保證、聲明及承諾以下各項：

- (a) the Customer shall become or is an applicant under the Scheme; 客戶將會或已成為計劃的申請人；
- (b) the Customer/Holding Company will open or has opened a CIES Account for the purpose of holding one or more Eligible Policies as Permissible Financial Assets in order to fulfill the relevant requirements under the Scheme; and 客戶/客戶的公司將會或已於宏利開立資本投資者入境計劃戶口，用於持有一份或多份合格保單作為獲許金融資產以符合計劃的要求；以及

- (c) as soon as the Customer obtains the Approval-in-Principle (if applicable) and/or Formal Approval and/or other relevant documents from the Director of Immigration in relation to his Entry Application under the Scheme, the Customer/Holding Company shall inform Manulife accordingly and provide such information, document or evidence as may be requested by Manulife. The Customer/Holding Company understands and accepts that failure to provide Manulife with the relevant information, document or evidence may render Manulife unable to comply with the relevant reporting requirements under the Rules and/or the Scheme, and the Customer's application under the Scheme may be affected accordingly;  
當客戶就其有關此計劃的申請獲得入境事務處處長對於其入境申請所發出之「原則上批准」(如適用)及/或「正式批准」及/或其他相關文件時，客戶/客戶的公司須相應地通知宏利，並提供宏利可要求的資料、文件或證據。客戶/客戶的公司明白及接受如客戶未能提供相關資料、文件或證據予宏利，宏利將因此而可能無法遵守規則及/或計劃內所訂立的有關申報要求，而客戶對此計劃的申請亦可能因而受影響；
- (d) except for the lien as provided in Clause 3.10 or unless with the written approval by Manulife, the Customer/Holding Company shall not charge, assign or create any interest in favor of any third party in any money or asset held in the CIES Account (including without limitation cash dividends and interest income accruing in the CIES Account);  
除第3.10條中規定的留置權之外或除得到宏利書面協議外，客戶/客戶的公司不得以任何第三方為受益人對資本投資者入境計劃戶口中持有的任何金錢或資產（包括但不限於資本投資者入境計劃戶口中產生的現金股利和利息收入）進行押記、轉讓或創設任何權益；
- (e) all cash and assets deposited or transferred by the Customer/Holding Company to the CIES Account is made in accordance with the Rules; and  
客戶/客戶的公司存入或轉賬於資本投資者入境計劃戶口的所有現金及資產均以符合規定所定而作出；以及
- (f) Manulife is and shall remain the sole financial intermediary (under the category as an insurer permitted to carry on Class C business as specified in Part 2 of Schedule 1 under the Insurance Ordinance) of the Customer under the Scheme.  
宏利是並且始終是客戶在計劃項下的唯一金融中介機構(以獲准經營保險業條例附表1第2部所指定的類別C業務的保險人類別下)。

**3.2 The Customer/Holding Company hereby further warrants, represents and undertakes to Manulife that during the continuance of this Agreement:**

客戶/客戶的公司在此進一步向宏利保證、聲明及承諾在本協議存續期間：

- (a) the Customer/Holding Company shall be and remain the sole and absolute beneficial owner of all monies and assets held in the CIES Account (including without limitation cash dividends and interest income accruing in the CIES Account) free from any lien, charge, security interest or other encumbrances whatsoever except for the lien as provided in Clause 3.10 and is required to prove to the satisfaction of DGIP all the relevant details of the material transaction(s) by him/her or on his/her behalf on the CIES Account by providing documentary evidence;  
客戶/客戶的公司是並且始終是資本投資者入境計劃戶口中持有的未設任何留置權、押記、擔保權益或其他產權負擔（包括但不限於資本投資者入境計劃戶口中產生的現金股利和利息收入）（第3.10條中規定的留置權除外）的所有金錢和資產的唯一及絕對實益所有人，並且需要通過提供文件證據，向投資推廣署署長證明其本人或代表其在資本投資者入境計劃戶口上的所有重大交易的相關詳細信息；
- (b) the Customer/Holding Company shall invest the monies and assets held in the CIES Account in accordance with the Rules and the terms of this Agreement. All cash invested in or transferred to the CIES Account and all cash proceeds of sale or other realization of Permissible Financial Assets shall be invested or re-invested in Permissible Financial Assets in accordance with the Rules and the terms of this Agreement. Subject to the exceptions permitted by the Scheme, the Customer/Holding Company must not enter into, facilitate, or permit any transaction, agreement or arrangement, whether or not legally effective or binding, which in the opinion of the DGIP and/or Director of Immigration, directly or indirectly, has as its purpose or effect or one of its purposes or effects (other than de minimis), the removal of or reduction or diminution in the value or benefit of

the Customer's portfolio of the Permissible Financial Assets held in the CIES Account, or incur any indebtedness in any form whatsoever using the investment portfolio as collateral for such indebtedness;

客戶/客戶的公司應根據規則及本合約的條款對資本投資者入境計劃戶口中持有的金錢和資產進行投資。向資本投資者入境計劃戶口投入的或轉入的所有現金以及獲許金融資產出售或變現所產生的所有現金收益均應根據規則及本合約的條款投資或再投資於獲許金融資產。除計劃允許的例外情況外，客戶/客戶的公司不得訂立、促成或允許投資推廣署署長及／或入境事務處處長認為其目的或影響或其目的或影響之一（最小的影響或目的除外）是直接或間接消除或降低或減少客戶在資本投資者入境計劃戶口中持有的獲許金融資產投資組合的價值或利益，或使用投資組合作為債務的抵押品產生任何形式的債務的任何交易、協議或安排（無論在法律上是否有效或具有約束力）；

- (c) the Customer/Holding Company shall not withdraw any money or asset from the CIES Account other than in accordance with the Rules;  
除根據規則進行的之外，客戶/客戶的公司不得從資本投資者入境計劃戶口提取任何金錢或資產；
- (d) the Customer/Holding Company shall not enter into, facilitate or permit any transaction, agreement or arrangement in connection with the monies or assets held in the CIES Account other than in accordance with the Rules and the terms of this Agreement;  
除根據規則及本合約的條款進行的之外，客戶/客戶的公司不得就資本投資者入境計劃戶口中持有的金錢或資產訂立、促成或允許任何交易、協議或安排；
- (e) the Customer/Holding Company shall provide all information and documents to Manulife upon request in connection with the provision of services by Manulife under this Agreement; and  
客戶/客戶的公司應按要求就宏利在本合約項下提供服務向宏利提供所有資料和文件；以及
- (f) the Customer/Holding Company shall notify Manulife in writing within five (5) Working Days if there is any change in any information provided to Manulife, including but not limited to change of name and contact details.  
如果向宏利提供的任何資料發生任何變更，包括但不限於姓名和聯繫方式的變更，客戶/客戶的公司應在五(5)個工作天內書面通知宏利。

The Customer understands that any failure to comply with the above provisions as well as any other provisions of the Rules may result in failure of the Customer's application under the Scheme and may result in a breach by the Customer of the Rules and the Customer's undertaking to DGIP and/or Director of Immigration under the Scheme.

客戶理解，未遵守上述規定以及規則的任何其他規定可能導致客戶在計劃項下的申請失敗，並可能導致客戶違反規則以及客戶在計劃項下對投資推廣署署長及／或入境事務處處長的承諾。

- 3.3 The Customer/Holding Company shall provide Manulife with such copies of application documents and information submitted to the DGIP and/or Director of Immigration and any acknowledgement of receipt given by the New CIES Office and/or Immigration Department as Manulife may request from time to time. 客戶/客戶的公司應向宏利提供宏利可能不時要求的提交給投資推廣署署長及／或入境事務處處長的申請文件和資料以及新資本投資者入境計劃辦公室及／或入境事務處出具的任何收悉確認書的複印件。
- 3.4 The Customer/Holding Company shall acknowledge and agree that if he/she fails to timely provide Manulife with any relevant information, documents or evidence required by Manulife to fulfill its reporting obligations under the New CIES, this may affect his/her application to DGIP and/or DoI under the New CIES.  
客戶/客戶的公司應確認並同意，如果他/她未能及時向宏利提供宏利為履行其在新資本投資者入境計劃下的報告義務所需的任何相關信息、文件或證據，這可能會影響他/她向投資推廣署署長和／或入境事務處處長提交的新資本投資者入境計劃申請。
- 3.5 Unless otherwise agreed between the Customer/Holding Company and Manulife in writing, the

Customer/Holding Company authorizes Manulife to provide any information concerning the Customer/Holding Company, the CIES Account, monies and assets held in the CIES Account and any transactions effected through the CIES Account to the DGIP, New CIES Office and Immigration Department upon its request. The provisions of this clause shall survive any termination or revocation of this Agreement.

除非客戶/客戶的公司和宏利另行書面約定，否則客戶/客戶的公司授權宏利按投資推廣署署長、新資本投資者入境計劃辦公室及／或入境事務處的要求向投資推廣署署長、新資本投資者入境計劃辦公室及／或入境事務處提供關於客戶、資本投資者入境計劃戶口、資本投資者入境計劃戶口中持有的金錢和資產以及通過資本投資者入境計劃戶口進行的任何交易的任何資料。本條的規定在本合約因任何原因終止或取消後仍有效。

3.6 The Customer/Holding Company undertakes to notify Manulife immediately in writing if the Customer/Holding Company:

客戶/客戶的公司承諾在客戶/客戶的公司發生下列情況時立即以書面通知宏利：

(a) ceases to be the sole absolute beneficial owner of the Permissible Financial Assets held in the CIES Account; or

客戶不再是資本投資者入境計劃戶口中持有的獲許金融資產的唯一絕對實益所有人；或

(b) is in breach of Clause 3.1(d), 3.2 (b) or 3.2 (d).

客戶違反第3.1(d)、3.2 (b)或3.2 (d)條。

3.6. The Customer/Holding Company shall provide Manulife with a copy of the Scheme application form (together with all supporting documents including the undertaking given to the DGIP and/or Director of Immigration to abide by the Rules) submitted to the New CIES Office and/or Immigration Department and undertakes to notify Manulife in writing as soon as possible if any of the details or information contained in the Scheme application form has changed or becomes inaccurate.

客戶/客戶的公司應向宏利提供提交給新資本投資者入境計劃辦公室及／或入境事務處的計劃申請表（連同所有證明文件，包括向投資推廣署署長及／或入境事務處處長作出的遵守規則的承諾）的複印件，並承諾如果計劃申請表中包含的任何詳情或資料變更或變成不準確後儘快以書面方式通知宏利。

3.7 The Customer/Holding Company shall notify Manulife in writing at least fourteen (14) Working Days before it appoints another person as his/her financial intermediary.

客戶/客戶的公司應在其委聘另一人作為其金融中介機構前至少十四(14)個工作天以書面方式通知宏利。

3.8 The Customer/Holding Company hereby authorizes Manulife to contact the DGIP, the New CIES Office and/or Director of Immigration directly from time to time to understand the status of the Customer's application under the Scheme, without the need of obtaining prior approval from or giving prior notice to the Customer/Holding Company.

客戶/客戶的公司特此授權宏利不時地直接聯繫投資推廣署署長、新資本投資者入境計劃辦公室及／或入境事務處處長，以瞭解客戶在計劃項下的申請狀況，而無需獲得客戶/客戶的公司的事先批准或事先向客戶發出通知。

3.9 In consideration of the services provided by Manulife under this Agreement, the Customer/Holding Company shall pay Manulife such fees and charges as notified by Manulife to the Customer/Holding Company from time to time.

作為宏利在本合約項下提供的服務的對價，客戶/客戶的公司應向宏利支付宏利不時通知客戶/客戶的公司的費用和收費。

3.10 Without prejudice to any other powers, authorities, rights and remedies available to Manulife under this Agreement, any and all Permissible Financial Assets held in the CIES Account shall be subject to a general lien in favour of Manulife as continuing security for the payment and discharge of any unpaid fees or expenses owing and owed by the Customer/Holding Company to Manulife under the Scheme. The Customer/Holding Company understands that the enforcement by Manulife of the lien hereunder, or the exercise by a court, regulatory authority or other competent authority of its powers to restrain or prohibit



any disposal or dealing in the assets held in the CIES Account for whatever reason (whether pursuant to the abovementioned lien or otherwise), may affect the success of the Customer's application under the Scheme and may result in a breach by the Customer of the Rules and the Customer's undertaking to DGIP and/or Director of Immigration under the Scheme.

在不影響宏利可在本合約項下獲得的任何其他權力、授權、權利和補救的情況下，在資本投資者入境計劃戶口中持有的任何和全部獲許金融資產均應以宏利為受益人設置總括留置權，作為支付和付清客戶在計劃項下應向宏利支付的任何未付費用或開支的連續性擔保。客戶/客戶的公司理解，宏利強制執行本合約項下的留置權，或法院、監管機構或其他主管機關行使其為任何原因限制或禁止對指資本投資者入境計劃戶口中持有的資產進行任何處置或交易的權力（不論以上述留置權為依據或其他依據而進行的），均可能會影響客戶/客戶的公司在計劃項下申請的成功，還可能導致客戶違反規則以及客戶在計劃項下對投資推廣署署長及／或入境事務處處長的承諾。

#### **4. CUSTOMER'S/HOLDING COMPANY'S ACKNOWLEDGEMENT**

##### **客戶/客戶的公司認知**

- 4.1 The Customer acknowledges that he/she has read and understood the Rules and agrees that as an applicant under the Scheme, the Customer shall abide by the Rules at all times. The Customer further acknowledges and agrees that:

客戶認知其已閱讀並理解規則，並同意，作為計劃項下的申請人，客戶始終遵守規則。客戶進一步認知並同意：

- (a) The Customer/Holding Company has the sole responsibility for ensuring his/her compliance with the Rules;  
客戶/客戶的公司對確保其遵守規則承擔全部責任；
- (b) Manulife and its directors, officers, employees and agents shall not be liable for any losses, expenses, costs, damages or other liabilities suffered by the Customer/Holding Company or any third party, or any failure of the Customer's application under the Scheme, arising directly or indirectly as a result of: (i) the Customer's/Holding Company's breach of this Agreement or any requirements under the Rules; or (ii) any advice that the Customer/Holding Company may receive from any person in respect of his/her application under the Scheme; and  
對於直接或間接因下列原因而使客戶/客戶的公司或第三方遭受的任何損失、開支、費用、損害或其他責任或客戶在計劃下之申請的任何失敗，宏利及其董事、高級職員、僱員和代理均不承擔任何責任：(i)客戶/客戶的公司違反本合約或規則項下的任何要求；或(ii)客戶/客戶的公司從任何人收到的與其在計劃項下進行申請有關的任何建議；以及
- (c) to the extent that the Customer/Holding Company is allowed to make changes to the Eligible Policy (including without limitation nomination of a new beneficiary, assignment of rights or change of owner), Manulife does not guarantee, warrant, represent or undertake that such changes may be made without prejudice to the Customer's/Holding Company's reliance on the Eligible Policy as a Permissible Financial Asset under the Scheme.  
在客戶/客戶的公司被允許對合格保單進行變更（包括但不限於指定新的受益人、轉讓權利或變更所有人）的範圍內，宏利不擔保、保證、聲明或承諾該等變更可在不影響客戶/客戶的公司依賴合格保單作為計劃項下的獲許金融資產的情況下進行。

4.2 The Customer/Holding Company acknowledges and agrees that:

客戶/客戶的公司認知並同意：

- (a) Manulife and its directors, officers, employees and agents will not provide any advice or assistance to the Customer/Holding Company with respect to the Customer's application under the Rules;  
宏利及其董事、高級職員、僱員和代理不會就客戶/客戶的公司向客戶提供任何建議或協助；
- (b) Manulife and its directors, officers, employees and agents will not provide any advice to the Customer/Holding Company on any tax, accounting, investment (including without limitation the suitability or profitability of any investment or transaction), legal or immigration matters, or other matters in relation to the Scheme, and the Customer/Holding Company will not solicit or rely upon any such advice (if given) from Manulife or any of its directors, officers, employees or agents;  
宏利及其董事、高級職員、僱員和代理均不會就任何稅務、會計、投資（包括但不限於任何投資或交易的合適性或盈利性）、法律或移民事項或與計劃有關的其他事項向客戶/客戶的公司提供任何建議，且客戶/客戶的公司不會向宏利或其任何董事、高級職員、僱員或代理徵求任何該等建議，也不會依賴於任何該等建議（如作出）；
- (c) Manulife does not provide any assurance or assume any responsibility or liability whatsoever towards the success or failure of the Customer's application under the Scheme, whether as a result of investing in the Eligible Policy or otherwise; and  
對於客戶在計劃項下進行申請的成敗（無論是否是因為投資合格保單或其他原因），宏利均不提供任何保證，也不承擔任何職責或責任；以及
- (d) The Customer/Holding Company shall seek independent advice if necessary.  
如有需要，客戶/客戶的公司應尋求獨立意見。

4.3 The Customer/Holding Company agrees to make his/her own judgments and decisions in relation to each transaction independently and without relying upon Manulife (or any of its directors, officers, employees or agents). The Customer/Holding Company assumes full responsibility for all investment decisions, dealings and transactions effected under the Eligible Policy and through the CIES Account. Neither Manulife nor any of its directors, officers, employees or agents shall incur any liability in connection therewith.

客戶/客戶的公司同意就每次交易獨立作出其自身的判斷和決定而並無依賴於宏利（或其任何董事、高級職員、僱員或代理）。客戶/客戶的公司對合格保單項下的以及通過資本投資者入境計劃戶口實行的全部投資決定、買賣和交易承擔全部責任。宏利或其任何董事、高級職員、僱員或代理均不對此承擔任何責任。

4.4 The Customer/Holding Company acknowledges and agrees that save and except for those provided in this Agreement, Manulife owes no duty or responsibility whatsoever to the Customer/Holding Company in relation to his/her application under the Scheme.

客戶/客戶的公司認知並同意除此合約所訂明以外，宏利一概不會對有關客戶/客戶的公司的投資者入境計劃申請負上任何責任。

4.5 The Customer/Holding Company agrees that he/she shall invest solely in the Eligible Policies for application under the Scheme.

客戶/客戶的公司同意客戶/客戶的公司僅投資於合格保單以申請資本投資者入境計劃。

4.6 Where the Customer/Holding Company appoints Manulife as the Customer's/Holding Company's financial intermediary (under the category as an insurer permitted to carry on Class C business as specified in Part 2 of Schedule 1 under the Insurance Ordinance) and chooses to deposit cash of HK\$3 million to the designated account opened with Manulife for the subsequent placing into the CIES IP, the Customer/Holding Company acknowledges and agrees that:

在客戶/客戶的公司委任宏利為客戶的金融中介機構（以獲准經營保險業條例附表1第2部所指定的類別C業務的保險人類別下）並選擇將300萬港元現金存於與宏利開設的指定帳戶並隨後投入資本投資者入境計劃投資組合下，客戶/客戶的公司承認並同意：

- (a) Pursuant to the Scheme Rules, the said HK\$3 million shall be subject to lock-up.  
根據計劃規則，上述300萬港元須鎖定。

- (b) Upon receipt of notification from HKIC or New CIES Office directly or via the Customer/Holding Company on the arrangements for placing the said HK\$3 million into the CIES IP, Manulife will transfer the said HK\$3 million in accordance with the said notification and/or instruction from HKIC or New CIES Office (as the case may be). Upon Manulife's transfer of the said HK\$3 million in accordance with the directions of HKIC or New CIES Office (as the case may be), Manulife shall be deemed to have discharge all its obligations, including but not limited to any reporting obligations. For the avoidance of doubt, Manulife shall not be liable for any losses and/or damages incurred by Customer/Holding Company for placing the said HK\$3 million into the CIES IP.  
在直接或透過客戶/客戶的公司收到香港投資管理有限公司或新資本投資者入境計劃辦公室就有關將上述 300 萬港元存入資本投資者入境計劃投資組合的安排的後，宏利將根據上述通知轉移上述 300 萬港元及/或來自香港投資管理有限公司或新資本投資者入境計劃辦公室（視情況而定）的指示。當宏利根據香港投資管理有限公司或新資本投資者入境計劃辦公室（視情況而定）的指示轉移上述300萬港元後，宏利將被視為已履行其所有義務，包括但不限於任何報告義務。為免生疑問，宏利概不負責客戶/客戶的公司因將上述300萬港元存入資本投資者入境計劃投資組合而產生的任何損失及/或損害。
- (c) Manulife shall not be responsible for verifying and/or ensuring Customer's/Holding Company's compliance with any terms and conditions issued by HKIC, New CIES Office and DGIP.  
宏利不負責核實及/或確保客戶/客戶的公司遵守香港投資管理有限公司、新資本投資者入境計劃辦公室及投資推廣署署長頒布的任何條款和條件。
- (d) Manulife shall hold the said HK\$3 million, without any interest, as a custodian for the purpose of the Scheme.  
宏利將作為計劃的託管人持有上述 300 萬港元，不會累積任何利息。
- (e) Pursuant to the Rules, if the said HK\$3 million deposited with Manulife is dissipated, whether in whole or in part, for whatever reason before it is placed into the CIES IP, the Customer/Holding Company shall be required to make up the lost amount by depositing the same amount into the [designated account/CIES Account] in accordance with the Rules.  
依規則，若上述存入宏利的 300 萬港元在存入資本投資者入境計劃投資組合之前因任何原因因全部或部分消散，客戶/客戶的公司須補足損失金額按照規則將等額存入【指定帳戶/資本投資者入境計劃投資帳戶】。
- (f) In the event where Customer/Holding Company provides written request to Manulife for the withdrawal of the said HK\$3 million or upon termination of this Agreement, whichever is earlier, Manulife will return the said HK\$3 million (or the balance thereof if part of the said HK\$3 million is dissipated or withdrawn for whatever reason), without interest, to the Customer/Holding Company. Manulife shall be deemed to have discharge all its obligations, including but not limited to any reporting obligations, upon returning the said HK\$3 million (or balance thereof) to the Customer/Holding Company.  
若客戶/客戶的公司向宏利提出書面要求提取上述 300 萬港元，或在本合約終止時（以較早者為準），宏利將退還上述 300 萬港元（或餘額，若上述300萬港元因任何原因而被消耗或提取），且不會累積利息。宏利在向客戶/客戶的公司退還上述300萬港元（或其餘額）後，將被視為已解除其所有義務，包括但不限於任何報告義務。

## 5. LIABILITIES AND INDEMNITY

### 責任和彌償

- 5.1 The Customer/Holding Company agrees that Manulife and its directors, officers, employees or agents shall not be liable to the Customer/Holding Company or to any third party for any losses, expenses, costs, damages or other liabilities suffered or incurred by the Customer/Holding Company or any third party, or any failure of the Customer's application under the Scheme, arising directly or indirectly out of or in connection with the performance by Manulife of any of its obligations or services under this Agreement or the exercise by Manulife of any of its rights, powers or discretion under this Agreement, including any action taken by Manulife to protect or enforce its rights or its lien under this Agreement, except where fraud is proven on the part of Manulife or its directors, officers, employees or agents.  
客戶/客戶的公司同意，對於直接或間接因宏利履行其在本合約項下的任何義務或服務或宏利行使其在本合約項下的任何權利、權力或酌定權（包括宏利採取的保護或強制執行其在本合約項下的權利或留置權的任何行動）而引起的或與之有關而使客戶/客戶的公司或任何第三方遭受或產生的任何損失、開支、費用、損害或其他責任，或客戶對計劃申請的失敗，宏利及其董事、高級職

員、僱員或代理均不對客戶/客戶的公司或任何第三方承擔任何責任，除證明宏利或其董事、高級職員、僱員或代理作出欺詐的情況外。

- 5.2 The Customer (and/or Holding Company) shall (jointly and severally) indemnify and hold harmless and keep Manulife (for itself or as trustee for its directors, officers, employees or agents) (collectively, the “**Indemnified Persons**”) indemnified in full against any and all claims, actions, losses, damages, expenses, costs (including legal costs on a full indemnity basis), proceedings and liabilities suffered or incurred by any of the Indemnified Persons of whatever nature and howsoever arising out of or in connection with the appointment of Manulife hereunder and with its execution of obligations or services, or exercise of rights, powers or discretion under this Agreement, including any action taken by Manulife to protect or enforce its rights or its lien under this Agreement; or any breach by the Customer/Holding Company of this Agreement or the Rules, except where fraud is proven on the part of Manulife or its directors, officers, employees or agents. The provisions of this Clause shall survive any termination or revocation of this Agreement.

對於因本合約項下對宏利的委聘以及宏利履行其在本合約項下的義務或服務，或行使其在本合約項下的權利、權力或酌定權（包括宏利採取的保護或強制執行其在本合約項下的權利或留置權的任何行動）；或客戶/客戶的公司對本合約或規則的任何違反而引起的或與之有關而使宏利（代表其自身或作為其董事、高級職員、僱員或代理的受託人，合稱「**受償人**」）遭受或產生的任何性質的任何和全部權利主張、訴訟、損失、損害、開支、費用（包括全額彌償的法律費用）、程序和責任，客戶(及／或客戶的公司)應(共同和各別)對任何一個受償人進行彌償，使其免受損害，並使其得到完全彌償，除證明宏利或其董事、高級職員、僱員或代理作出欺詐的情況外。本條的規定在本合約因任何原因終止或取消後仍有效。

## 6. TERMINATION

### 終止

- 6.1 Manulife may terminate this Agreement with seven (7) Working Days written notice to the Customer/Holding Company if:

如發生下列情況，宏利可以提前七(7)個工作天向客戶/客戶的公司發送書面通知終止本合約：

- (a) No Eligible Policy is held in the CIES Account for fourteen (14) calendar days or such shorter period as Manulife may prescribe;  
資本投資者入境計劃戶口在十四(14)個公曆日（或宏利可訂明的更短的時段）裏沒有持有任何合格保單；
- (b) The Customer/Holding Company has subsequently dealt with his/her Permissible Financial Assets in the CIES Account such that the Eligible Policy no longer constitutes the entirety of the Permissible Financial Assets held in the CIES Account by the Customer under the Scheme;  
客戶/客戶的公司隨後已處理了其資本投資者入境計劃戶口內的獲許金融資產，使合格保單不再構成客戶在計劃項下資本投資者入境計劃戶口內持有的全部獲許金融資產；
- (c) The Customer/Holding Company has cancelled the Eligible Policy during the cooling-off period or surrendered the Eligible Policy and has not re-invested the proceeds of realization into the Eligible Policy within fourteen (14) calendar days;  
客戶/客戶的公司於冷靜期內取消合格保單或退保合格保單，但並未於十四(14)個公曆日內把變現收益再投資於合格保單；
- (d) The Customer/Holding Company commits any breach of any undertakings or other terms and conditions of this Agreement;  
客戶/客戶的公司就本合約的任何承諾或其他條款有任何的違反；
- (e) The DGIP and/or Director of Immigration has determined that the Customer/Holding Company has breached the undertaking given to the DGIP and/or Director of Immigration pursuant to the Rules;  
投資推廣署署長及／或入境事務處處長確定客戶/客戶的公司已違反根據規則向投資推廣署署長及／或入境事務處處長作出的承諾；
- (f) Any legal or regulatory requirement prohibits or renders illegal maintenance or operation of the CIES Account;  
任何法律或規管性規定禁止資本投資者入境計劃戶口的維持或運作，或使維持或運作資本

投資者入境計劃戶口違法；

- (g) The Customer/Holding Company appoints another person to be his/her financial intermediary under the Rules;  
客戶/客戶的公司委聘另一人作為規則下客戶的金融中介機構；
  - (h) In the case where the Customer has lodged an application with the DGIP under the Scheme but has not received the “Approval-in-Principle” or “Formal Approval” from the Director of Immigration as of the date of this Agreement, the Customer/Holding Company fails to provide to Manulife a copy of the “Approval-in-Principle” or “Formal Approval” from the Director of Immigration under the Scheme within 1 year of the date of this Agreement;  
客戶已在計劃項下向投資推廣署署長提出申請，但截至本合約日期仍未收到入境事務處處長的「原則上批准」或「正式批准」，客戶/客戶的公司在自本合約日期的1年內未提供予宏利在計劃項下入境事務處處長的「原則上批准」或「正式批准」的複印件；
  - (i) In the case where the Customer/Holding Company fails to provide to Manulife a copy of the “Formal Approval” from the Director of Immigration under the Scheme within 1 year of the date of this Agreement;  
客戶/客戶的公司在自本合約日期的1年內未提供予宏利在計劃項下入境事務處處長的「正式批准」的複印件；
  - (j) The Customer’s application under the Scheme has been rejected by the DGIP and/or Director of Immigration;  
客戶在計劃項下的申請被投資推廣署署長及／或入境事務處處長拒絕；
  - (k) The Customer/Holding Company has withdrawn from the Scheme or is otherwise no longer required to abide by the Rules for whatever reason;  
客戶/客戶的公司從計劃退出，或在其他方面因任何原因不再需要遵守規則；
  - (l) The Customer has successfully applied for and become a permanent resident of Hong Kong after a period of continuous ordinary residence in Hong Kong of not less than seven (7) years;  
在連續通常居於香港不少於七(7)年後，客戶已成功申請並成為香港永久性居民；
  - (m) The Customer has successfully applied for and obtained unconditional stay in Hong Kong after seven (7) years of satisfying the Permissible Financial Assets requirements under the Scheme;  
在7年滿足計劃項下的獲許金融資產的要求後，客戶已成功申請並獲得無條件在香港逗留；以及
  - (n) Manulife does not otherwise have any further obligations under the Rules in respect of the Customer/Holding Company.  
宏利在規則項下對客戶/客戶的公司無進一步責任。
- 6.2 Notwithstanding Clause 6.1, Manulife is entitled to terminate this Agreement with seven (7) Working Days written notice to the Customer/Holding Company.  
儘管有第6.1條的規定，宏利可通過提前七(7)個工作天向客戶/客戶的公司發送書面通知而終止本合約。
- 6.3 The Customer/Holding Company is entitled to terminate this Agreement with seven (7) Working Days written notice to Manulife.  
客戶/客戶的公司可通過提前七(7)個工作天向宏利發送書面通知而終止本合約。
- 6.4 Upon termination of this Agreement pursuant to this Clause 6:  
本合約根據本第6條終止後：
- (a) both parties to this Agreement shall notify the DGIP in writing within seven (7) Working Days after the termination date; and  
本合約雙方應在終止日期後的七(7)個工作天內以書面通知入境事務處處長；
  - (b) the continuation of the Eligible Policy in accordance with its terms shall not be prejudiced.

合格保單根據其條款繼續有效，不受影響。

## 7. INFORMATION DISCLOSURE

## 資料披露

- 7.1 The Customer/Holding Company understands and accepts that Manulife is required to comply with the reporting requirements provided in the Schedule to this Agreement and the Scheme Rules. In addition, the Customer/Holding Company understands and agrees that Manulife is required to carry out customer due diligence and fulfill relevant anti-money laundering and counter-terrorist financing obligations under the Anti-Money Laundering and Counter Terrorist Financing Ordinance (Cap. 615 of the Laws of Hong Kong), and report to the New CIES Office on his/her continuous compliance with the Scheme Rules. The Customer/Holding Company shall provide the relevant information, documents or evidence to Manulife for compliance of the abovementioned rules and regulations. Such reports shall be used by the DGIP and/or New CIES Office in accepting, rejecting or otherwise considering the Customer's application under the Scheme. The Customer/Holding Company hereby expressly agrees that Manulife shall not be held liable or responsible whatsoever for the decisions, actions taken by the DGIP and/or New CIES Office in relation to the Customer's application as a result of the reports provided by Manulife as aforesaid.

客戶/客戶的公司明白及接受宏利須遵守本合約附件中所述的申報要求及計劃規則。此外，客戶/客戶的公司明白及同意，宏利需要根據香港法例第615章《打擊洗錢及恐怖分子資金籌集條例》進行客戶盡職調查，並履行相關的反洗錢和反恐怖分子資金籌集義務，並向新資本投資者入境計劃辦公室報告其持續遵守計劃規則的情況。客戶/客戶的公司應向宏利提供相關信息、文件或證據，以遵守上述規則和法規。該報告會被投資推廣署署長及／或新資本投資者入境計劃辦公室用作為接受、拒絕或考慮客戶計劃下的申請之用。客戶/客戶的公司現明確地同意宏利就上述有關客戶的申請所提交的報告因而導致投資推廣署署長及／或新資本投資者入境計劃辦公室作出的決定或行動，一概不會承擔任何責任。

- 7.2 Manulife is expressly authorized to disclose any information it has concerning the Customer/Holding Company, the services provided by Manulife hereunder and monies and assets held in the CIES Account: (a) to any member of the Manulife Group; (b) to any agent, contractor or third party service provider who provides administrative, telecommunications, computer, payment or clearing, nominee, custodian or other services to Manulife (“**Service Provider**”); (c) to independent financial advisers; (d) to any brokers; (e) upon request, to any government, legal or regulatory authority, exchange or self-regulated body (whether within or outside Hong Kong); and (f) in compliance with any applicable laws, rules or regulations or pursuant to any order, judgment or direction of any court, tribunal or other authority. Any such disclosures may be made for the purposes under Clause 8.3 or any other purpose as Manulife considers appropriate.

明確授權宏利向下列各方或在下列情況下披露其擁有的與客戶/客戶的公司、宏利在本合約項下提供的服務以及資本投資者入境計劃戶口中持有的金錢和資產有關的任何資料：(a) 宏利集團的任何成員；(b) 向宏利提供行政、通訊、電腦、支付或結算、被指定人、保管人或其他服務的任何代理、承包商或第三方服務供應商（「**服務供應商**」）；(c) 獨立的財務顧問；(d) 任何經紀人；(e) 經要求，向任何政府、法律或監管機構、交易所或自律機構（無論在香港境內還是境外）；及(f) 遵守任何適用的法規、規則或法規或者根據任何法院、審裁處或其他主管機構的任何命令、判決或指令。任何該等披露可為第8.3條下的目的而作出或任何其他宏利認為適當的目的而作出。

- 7.3 The Customer/Holding Company undertakes to provide such information as Manulife may request from time to time in order for Manulife and/or any Service Provider to provide the services hereunder, or for Manulife and/or any Service Provider to comply with applicable laws, rules and regulations or to respond to requests from any government, legal or regulatory authority or self-regulated body. Without limiting the generality of the foregoing, the Customer/Holding Company undertakes to provide such information as Manulife may require to establish

the true and full identity of the Customer/Holding Company and the Customer's/Holding Company's financial situation, investment experience and investment objectives. If the Customer/Holding Company fails to provide such information, Manulife may not be able to open or maintain the CIES Account for the Customer/Holding Company and/or provide the Customer/Holding Company any services.

客戶/客戶的公司承諾提供宏利可能不時要求的資料，使宏利和/或任何服務供應商可提供本合約項下的服務，或使宏利和/或任何服務供應商可遵守適用的法律、規則和法規，或回應任何政府法律或監管機構或自律機構的要求。在不限制上述規定的一般性的前提下，客戶/客戶的公司承諾提供宏利可能要求的資料，以確立客戶/客戶的公司真實及完整的身份以及客戶/客戶的公司的財務狀況、投資經驗和投資目標。如果客戶/客戶的公司未提供該等資料，則宏利可能無法為客戶/客戶的公司開立或維持資本投資者入境計劃戶口及/或向客戶/客戶的公司提供任何服務。

## 8. PERSONAL DATA

### 個人資料

- 8.1 The Customer shall from time to time supply to Manulife those personal data in connection with the CIES Account, or which is otherwise necessary for the performance of the Agreement by Manulife. If the Customer fails to supply such personal data, Manulife may not be able to open or maintain the CIES Account for the Customer and/or provide the Customer any services.

客戶應不時地向宏利提供與資本投資者入境計劃戶口有關的，或在其他方面為宏利履行本合約所需的個人資料。如果客戶未提供該等個人資料，則宏利可能無法為客戶開立或維持資本投資者入境計劃戶口及/或向客戶提供任何服務。

- 8.2 All personal data relating to the Customer (whether provided by him/her or any other person, whether provided before or after the CIES Account is opened for him/her, and by whatever means it is provided) may be provided by Manulife to the following persons whether or not they are in or outside of Hong Kong: (a) any director, officer, employee of Manulife; (b) any Service Provider; (c) independent financial advisers; (d) any brokers; (e) where personal data is collected by Manulife as agent or for forwarding to or otherwise applying for any facility or service, any person for such purpose who may not be in Hong Kong and may not be subject to the PDPO and not restricted in the use of the data; (f) any trustee, registrar or custodian of any unit trust or collective investment scheme in connection with the provision of any services hereunder; (g) credit reference agencies and, in the event of default, debt collection agencies; (h) any person to whom Manulife transfers, assigns or proposes to transfer or assign its interests and/or obligations in respect of the CIES Account or any services hereunder; (i) third party providers of marketing, technology, financial products or services for the purpose of sending the Customer promotional materials and conducting direct marketing; or (j) any person to whom Manulife or its agents is required by law, regulation, court order or request from any governmental or regulatory body to provide such data.

與客戶有關的所有個人資料（無論是由客戶還是任何其他人提供，無論是在為客戶開立資本投資者入境計劃戶口之前或之後提供，也無論通過何種方式提供）可由宏利提供給下列人士（無論其是在香港境內還是境外）：(a) 宏利的任何董事、高級職員、僱員；(b) 任何服務供應商；(c) 獨立的財務顧問；(d) 任何經紀人；(e) 當個人資料由宏利作為代理收集或用於轉交或以其他方式申請任何資金融通或服務時，為該目的向任何人提供，而該人可能不在香港境內及可能不受《私隱條例》約束，在使用資料方面亦不受限制；(f) 與本合約項下任何服務的提供有關的任何單位信託或集體投資計劃的任何受託人、登記官員或保管人；(g) 信用徵詢機構及（在發生違約事件的情況下）債務追討公司；(h) 宏利向其轉讓、出讓或擬議轉讓、出讓與資本投資者入境計劃戶口或本合約項下的任何服務有關的權益及/或義務的任何人士；(i) 第三方營銷、技術、金融產品或服務供應商，目的是向客戶發送促銷材料及進行直接營銷；或(j) 根據法律、法規、法院命令或任何政府或監管機構的要求宏利或其代理須向其提供該等資料的任何人士。

- 8.3 All data relating to the Customer (whether provided by him/her or any other person, whether provided before or after the CIES Account is opened for him/her, and by whatever means it is provided) held by Manulife (whether supplied by the Customer or any other person, whether provided before or after the CIES Account is opened for him/her, and by whatever means it is provided) may be used for: (a) operating internal control/verification procedures; (b) conducting credit and other status checks and assisting other institutions to conduct such checks; (c) ongoing administration of the CIES Account; (d) providing the Customer with the services hereunder and other related services; (e) any purpose relating to collection of any sums due or enforcement of any charge or security in favour of Manulife; (f) forming part of the records of the recipient of the data as to the business carried on by it; (g) observing any legal, governmental or regulatory requirements of Hong Kong or other relevant jurisdiction including any disclosure or notification requirements; (i) sending the Customer promotional materials and conducting direct marketing in relation to Manulife's products and services, co-branded products and services, products and services of a similar nature offered by Manulife and its affiliates, and related products and services offered by Manulife's business partners; and (j) any other purpose relating to the business or dealings of Manulife.

宏利持有（無論是由客戶或任何其他人提供，無論是在為客戶開立資本投資者入境計劃戶口之前或之後提供，也無論通過何種方式提供）的所有關於客戶的資料（無論是由客戶或任何其他人提供，無論是在為客戶開立資本投資者入境計劃戶口之前還是之後提供，也無論通過何種方式提供）均可用於：(a) 運作內部控制/核查程序；(b) 進行信用及其他狀況審查，以及協助其他機構進行上述審查；(c) 持續管理資本投資者入境計劃戶口；(d) 向客戶提供本合約項下的服務以及其他相關服務；(e) 與追討任何欠款或執行以宏利為受益人的任何押記或擔保有關的任何目的；(f) 構成

資料接收人所經營業務紀錄的一部份；(g) 遵從香港或其他有關司法管轄區的任何法律、政府或監管要求，包括任何披露或通知要求；(i) 就宏利的產品和服務、聯合品牌的產品和服務、宏利及其關聯公司提供的類似性質的產品和服務以及宏利業務合作夥伴提供的相關產品和服務，向客戶發送促銷材料及進行直接營銷；和(j) 與宏利的業務或交易相關的任何其他目的。

- 8.4 The Customer agrees that his/her data may be transferred to any place outside Hong Kong, whether for the processing, holding or use of such data outside Hong Kong, and to any Service Provider (whether within or outside Hong Kong) in connection with the services provided hereunder.

客戶同意，客戶的資料可轉移至香港境外任何地點，不論是否為在香港境外進行處理、持有或使用有關資料，且就本合約項下提供的服務有關的亦可轉移至任何服務供應商（無論其在香港境內還是境外）。

- 8.5 The Customer has the right in accordance with the terms of the PDPO to: (a) check or enquire whether Manulife holds personal data about him/her; (b) request access to any such personal data held by Manulife within a reasonable time, in a reasonable manner and in a form that is intelligible; (c) request the correction of his/her personal data which is inaccurate; (d) be given reasons if a request for access or correction is refused; (e) ascertain Manulife's policies and practices in relation to personal data and to be informed of the kind of personal data held by Manulife; and (f) in relation to consumer credit, request to be informed which items of data are routinely disclosed to credit reference agencies or debt collection agencies, and be provided with further information to enable the making of an access and correction request to the relevant credit reference agency or debt collection agency. Manulife may charge a reasonable fee for processing any data access request.

根據《私隱條例》的條款，客戶有權：(a) 核查或查詢宏利是否持有關於客戶的個人資料；(b) 要求於合理時間內以合理方式及易於理解的形式查閱宏利持有的任何該等個人資料；(c) 要求更正不準確的客戶個人資料；(d) 在查詢或更正的要求遭拒絕時獲知其理由；(e) 查明宏利的個人資料政策及做法，並獲告知宏利持有的個人資料的種類；及(f) 在客戶信用方面，要求獲告知定期向信用徵詢機構或債務追討公司披露的資料項目，並獲提供進一步資料以便向有關信用徵詢機構或債務追討公司提出查閱及更正資料的要求。宏利可就處理任何查閱資料的要求收取合理費用。

- 8.6 The Customer may direct any request for access to and/or correction of personal data or for information regarding policies and practices of and the kinds of personal data held by Manulife in writing to Individual Financial Products at Manulife (International) Limited, 22/F., Manulife Financial Centre, 223-231 Wai Yip Street, Kwun Tong, Kowloon, Hong Kong.

客戶可致函香港九龍觀塘偉業街223-231 號宏利金融中心22樓宏利人壽保險(國際) 有限公司個人理財產品業務部，要求查閱和/或更正個人資料或查詢宏利持有個人資料的政策做法及持有的個人資料種類。

## 9. SEVERABILITY

### 可分割

- 9.1 If any provision in this Agreement is declared by the Hong Kong courts to be illegal, invalid or unenforceable for any reason in Hong Kong, such provision shall be ineffective only to the extent of such illegality, invalidity or unenforceability and shall, to the maximum extent permitted by the laws of Hong Kong, be severed from this Agreement and shall not affect the force, effect and validity of the remaining provision hereof.

本合約的任何條款如因任何原因而在香港被香港法院宣稱為不合法、無效或不能履行，即只限在該程度上不合法、失效或不能履行，並在香港法律最寬之容許下與本合約分割，而不影響本合約餘下條款的效力。



## 10. GENERAL AGREEMENT PROVISIONS

### 合約的一般條款

- 10.1 The provisions set out in this Agreement shall take precedence over provisions contained in any other agreements or contracts made between the Customer/Holding Company and Manulife in the event of any conflict or inconsistency between them.

本合約所列的條文如與由客戶/客戶的公司及宏利訂立的任何其他協議或合約的條文有任何抵觸或不一致之處，一概以本合約的條文為準。

- 10.2 [Intentionally deleted]  
【故意刪除】

- 10.3 The relevant Eligible Policies issued shall remain in full force and effect notwithstanding their eligibility status under the Scheme, the result of the Customer's application under the Scheme or whether the Customer has been granted permission to stay in Hong Kong or a Hong Kong permanent resident status. 不論合格保單在計劃下符合資格的狀況、客戶在計劃下的申請的結果或客戶有否被准許在香港逗留或獲得香港永久居留資格，已簽發的有關合格保單持續保持十足效力及作用。

- 10.4 Manulife is not responsible for the eligibility of the Customer's application under the Scheme or whether the Customer has been granted permission to stay in Hong Kong or a Hong Kong permanent resident status. 就客戶在計劃下的申請的資格或客戶有否被准許在香港逗留或獲得香港永久居留資格，宏利概無需對此承擔任何責任。

- 10.5 This Agreement is the complete and entire agreement between the parties, and supersedes all proposals or prior agreements, oral or written and all other communications between the parties, relating to the subject matter of this Agreement. No amendment, modification or waiver in respect of this Agreement shall be effective unless in writing signed by both parties, For the avoidance of doubt, the provisions in the Schedule to the Agreement shall not be altered without the written consent of the DGIP.

本合約是雙方之間的完整和全部協議，並取代雙方之間關於本合約標的事項的所有建議書或先前協議（無論是口頭的還是書面的）以及所有其他通訊。除非雙方以書面簽署的方式進行，否則對本合約的任何修改、變更或寬免均屬無效。為免生疑問，未經投資推廣署署長的書面同意，本合約的附件的條文不得更改。

- 10.6 Any notice which is required to be given under this Agreement by either party shall be in writing and signed by that party. Any notice shall be given by one party to the other party by personal delivery or registered post to the address of that other party as appearing in this Agreement or to such other address in or out of Hong Kong as from time to time notified by one party to the other party in writing and signed. Any notice shall be deemed to have been duly given: (1) if sent by personal delivery upon delivery at the last known address of the other party; or (2) if sent by registered post, within five (5) Working Days after the date of posting.

任何一方需在本合約項下發出的任何通知均應採用書面形式並由該方簽署。一方向另一方發出的任何通知均應由專人或通過掛號郵件交付至本合約中顯示的該方地址或不時通知的香港境內或境外的其他地址。任何通知均在下列情況下被視為正式交付：(1)如通過專人交付，則為交付至另一方最後所知的地址時；或(2)如通過掛號信交付，則為郵寄日期後的五(5)個工作天內。

- 10.7 All reports and written notifications to the DGIP referred to in the above provisions shall be sent (by email or post) to the following person:

所有按照上述條文所提交給投資推廣署署長的報告及書面通知應用電郵或郵寄方式送交致下列收件人：

|             |                                                                      |                           |
|-------------|----------------------------------------------------------------------|---------------------------|
| Title 職銜:   | New Capital Investment Entrant Scheme Office                         | 新資本投資者入境計劃辦公室             |
| Address 地址: | 15/F, Revenue Tower,<br>5 Gloucester Road,<br>Wan Chai,<br>Hong Kong | 香港灣仔告士打道5號<br>稅務大樓<br>15樓 |
| Email 電郵:   | <a href="mailto:newcies@investhk.gov.hk">newcies@investhk.gov.hk</a> |                           |

The New CIES Application Reference Number is assigned by the New CIES Office and the relevant subject matter should be quoted in any communication with the New CIES Office (if applicable).  
新資本投資者入境計劃申請編號由新資本投資者入境計劃辦公室分配，並且在與其的任何通信中亦須註明由新資本投資者入境計劃辦公室的計劃申請編號及有關事項的內容（如適用）。

- 10.8 The Customer/Holding Company further acknowledges that he/she understands that the Agreement is drafted in English and he/she fully understands the contents therein, and that the Chinese version is translated for his reference only, and that the English version of this Agreement shall prevail in the event of any inconsistency between the English and Chinese versions.

客戶/客戶的公司進一步認知其理解本合約以英文起草，並充分理解其中的內容，以及中文版本僅供其參考而翻譯，以及若本合約中英文版本有任何不一致之處，則以英文版本為準。

- 10.9 The Customer/Holding Company acknowledges that he/she has fully read, understood and agreed to the terms of this Agreement and has been advised to seek independent advice (legal, financial or otherwise) in relation to the Scheme, the Rules, his/her rights and obligations under the Eligible Policies and this Agreement and the risks (financial or otherwise) associated therewith.

客戶/客戶的公司認知，其已充分閱讀、理解並同意本合約的條款，並已被建議就計劃、規則、其在合格保單和本合約項下的權利和義務以及與之有關的風險（財務或其他風險）尋求獨立意見（法律、財務或其他意見）。

- 10.10 This Agreement shall be governed by and construed in accordance with the laws of Hong Kong, and each party hereby irrevocably submits to the non-exclusive jurisdiction of the courts of Hong Kong.

本合約將受香港法律管轄並據其解釋，每一方特此不可撤銷地接受香港法院的非專屬管轄。

IN WITNESS whereof this Agreement is duly executed on the date first above written.  
本合約於首頁書明的日期簽訂，以茲證明。

Signed for and on behalf of  
Manulife (International) Limited by  
代表宏利人壽保險(國際)有限公司簽署

\_\_\_\_\_  
Signature 簽署

\_\_\_\_\_  
Name 姓名 / Position 職位

Signed by the Customer in the presence of:  
客戶於見證人面前簽署:

\_\_\_\_\_  
Witness signature 見證人簽署

\_\_\_\_\_  
Customer Signature 客戶簽署

\_\_\_\_\_  
Witness Name 見證人姓名

\_\_\_\_\_  
Customer Name 客戶姓名

Signed by the Holding Company in the presence of:  
控股公司於見證人面前簽署:

\_\_\_\_\_  
Witness signature 見證人簽署

\_\_\_\_\_  
Holding Company's Authorized Person Signature  
控股公司授權人簽署

\_\_\_\_\_  
Witness Name 見證人姓名

\_\_\_\_\_  
Holding Company's Authorized Person Name  
控股公司授權人姓名

## Schedule 附件

The provisions set out in this Schedule shall be of the essence of the contract between Manulife and the Customer/Holding Company and shall prevail in the event of any conflict or inconsistency between these essential provisions and other terms of this Agreement. Unless otherwise specified, capitalised terms used herein shall bear the same meanings as those defined in the Scheme Rules.

本附件中所載的特定條文是宏利和客戶/控股公司之間合同的主要部份，如本合約的其他條款與該等特定條文有互相抵觸或不一致之處，一概以該等特定條文為準。除非另有說明，否則本附件中使用的定義詞彙應具有規則中定義的含義。

1. The CIES Account of the Customer/Holding Company, opened with Manulife and operated in accordance with the instruction of the Customer/Holding Company, shall only hold in his/her own name (or in the name of the Holding Company) the following:  
客戶/控股公司在宏利處開立、並按客戶/控股公司的指示運作的資本投資者入境計劃戶口中，只可以他/她自己的名義持有(或其控股公司名義持有)以下各項：
  - i. Permissible Financial Assets;  
獲許金融資產；
  - ii. cash of HK\$3 million for placing into the CIES IP;  
300萬港元現金，以供投入資本投資者入境計劃投資組合；
  - iii. cash proceeds of sale or other realization of Permissible Financial Assets;  
出售或以其他方式把獲許金融資產變賣後所得的現金收益；
  - iv. cash transferred to the CIES Account by the Customer/Holding Company for investment in Permissible Financial Assets; and  
客戶/控股公司存入或轉往資本投資者入境計劃戶口，用以投資於獲許金融資產的現金；以及
  - v. cash representing cash dividends or interest accruing in the CIES Account.  
於資本投資者入境計劃戶口內累積的現金股息或利息。
2. All cash transferred to the CIES Account by the Customer/Holding Company and all cash proceeds of sale or other realization of the Permissible Financial Assets shall be invested or re-invested in Permissible Financial Assets and/or real estate in accordance with the Rules.  
客戶/控股公司存入資本投資者入境計劃戶口的所有現金，以及出售或以其他方式把獲許金融資產變賣後所得的所有現金收益，必須並按照規則的規定投資或再投資於獲許金融資產及／或房地產上。
3. Manulife shall notify the DGIP in writing within seven (7) Working Days of acquiring actual knowledge of any of the following:  
宏利在實際知悉發生下列任何事項後，必須於七(7)個工作天內以書面通知投資推廣署署長：
  - (a) any instruction by the Customer/Holding Company to appoint it as a new financial intermediary;  
客戶/控股公司發出任何指示，委聘其為新的金融中介機構；
  - (b) the Customer/Holding Company has withdrawn any assets from the CIES Account (other than cash dividends or interest accruing in such account) or received any new injection of assets into the account;  
客戶/控股公司已從資本投資者入境計劃戶口內提取任何資產(該戶口內累積的現金股息或利息除外) 或向指定帳戶注入新資產；
  - (c) any instruction from the Customer/Holding Company to withdraw any assets from the CIES Account (other than cash dividends or interest accruing in such account) or received any new injection of assets into the account;

客戶/控股公司發出指示，要從資本投資者入境計劃戶口內提取任何資產(該戶口內累積的現金股息或利息除外) 或向指定帳戶注入新資產；

- (d) the Customer/Holding Company has not re-invested the proceeds of sale or other realization of Permissible Financial Assets in further Permissible Financial Assets within the following period (or such other period as may be provided by the Rules then in force):  
客戶/控股公司沒有在下列期限內(或在當時施行的規則所訂明的其他期限內)，把出售或以其他方式將獲許金融資產變賣後所得的收益，再投資於其他獲許金融資產上：
- (i) no more than fourteen (14) calendar days may elapse between the date of the contract for the sale of the asset being sold and the date of the contract for the purchase of the reinvestment assets;  
出售原有資產的立約日期和購入再投資項目新資產的立約日期，不得相隔超過十四(14)個公曆日；
- (ii) in calculating the period mentioned in Clause 3(d)(i) above:  
在計算上文第3(d)(i)條所述的期限時：
- (1) “date of the contract” means the date on which the written agreement comes into legal effect;  
“立約日期”指書面協議產生法律效力的日期；
- (2) the first date referred to shall be excluded and the last date referred to shall be included;  
不包括所指的首日，但包括所指的最後一日；
- (3) if the first and/or last day of the period would otherwise be a Sunday, a public holiday, a gale warning day or a black rainstorm warning day, the first and/or last day shall instead be the next following Working Day and the period shall be extended accordingly;  
如該期限的首日及/或最後一日是星期日、公眾假日、烈風警告日或黑色暴雨警告日，該日將順延至隨後的一個工作天，該期限亦相應延長；
- (e) any instruction from the Customer/Holding Company to transfer the CIES Account or any assets in the CIES Account (other than cash dividends or interest accruing in such account) to any other financial intermediary or other person;  
客戶/控股公司發出任何指示，要把資本投資者入境計劃戶口或該戶口內的任何資產(該戶口內累積的現金股息或利息除外)轉往任何其他金融中介機構或轉給他人；
- (f) (Except for any lien to secure payment or Manulife's proper commissions, fees, expenses and charges), the Customer/Holding Company has charged, assigned or created any interest in favour of a third party in any assets in the CIES Account (including cash dividends or interest accruing therefrom, if any, PROVIDED that such cash dividends or interest are still held in the CIES Account);  
(除了為保證付款而設定的留置權或宏利的正當佣金、費用、開支及收費外)，客戶/控股公司已把資本投資者入境計劃戶口內的任何資產(包括累積在該帳戶內並仍存於該帳戶的現金股息或利息(如有的話))進行押記、轉讓或設定以第三方為受益人的權益；
- (g) the Customer has ceased to be the sole beneficial owner of all assets in the CIES Account (other than cash dividends or interest accruing in such account);  
客戶不再是資本投資者入境計劃戶口內全部資產(該戶口內累積的現金股息或利息除外)的唯一實益擁有人；以及
- (h) any instruction by the Customer/Holding Company to close the CIES Account; and  
客戶/控股公司發出取消資本投資者入境計劃戶口的指示；及。
- (i) any instruction by the Customer/Holding Company for Manulife to cease the appointment as his/her financial intermediary.  
客戶/控股公司發出指示，終止委聘宏利為其金融中介機構。

4. Within fourteen (14) Working Days after the first anniversary of the grant of Formal Approval by the Director of Immigration to the Customer to join the Scheme, and within fourteen (14) Working Days after each subsequent anniversary if Manulife still operates the CIES Account at such anniversary, Manulife shall:  
在入境事務處處長向客戶批予「正式批准」參加計劃的首個週年日後的十四(14)個工作天內，以及在其後每個週年日後的十四(14)個工作天內，如宏利在該週年日仍然管理資本投資者入境計劃戶口，則宏利必須：
- (a) notify the DGIP in writing of the composition of the CIES Account at the relevant anniversary and the acquisition cost (exclusive of all dealing charges, commission and stamp duty) of the Permissible Financial Assets held in such account at that date; and  
以書面通知投資推廣署署長資本投資者入境計劃戶口在該週年日的組成份，以及該戶口內持有的獲許金融資產在該日的購入價(不包括一切交易費、佣金和印花稅)；以及
  - (b) confirm in writing to the DGIP that to the best of Manulife's knowledge that Manulife has fully complied with the reporting obligations set out above in respect of the period since the appointment as the Customer's/Holding Company's financial intermediary until the relevant anniversary, or notify the DGIP in writing of all matters which should have been reported in respect of that period.  
以書面向投資推廣署署長證實宏利已盡其所知，自獲委聘為客戶/控股公司的金融中介機構起至相關週年日期間，已充分履行上文所述的申報責任，或已把所有應在該段期間申報的事宜以書面通知投資推廣署署長。
5. Manulife shall promptly answer all queries addressed to it by the DGIP concerning the CIES Account and supply such documents (whether copies or originals) concerning such account as the DGIP requests. The Customer hereby irrevocably authorizes Manulife to answer all such questions and provide such documents (including but not limited to contract notes, daily and monthly activity statements) to the DGIP accordingly. 宏利須盡速回答投資推廣署署長向其提出的關於資本投資者入境計劃戶口的所有查詢，並須按投資推廣署署長的要求提供與該戶口有關的文件(不論副本或正本)。客戶在此授權宏利答覆該等查詢和提交該等文件(包括但不限於買賣單據、日結單及月結單)，而此項授權是不可撤銷的。
6. The expression "Working Day" in the provisions in this Schedule means a day other than a Sunday, a public holiday or a gale warning day or a black rainstorm warning day (both as defined in section 71(2) of the Interpretation and General Clauses Ordinance (Cap. 1 of the Laws of Hong Kong)).  
上述條文中，“工作日”指星期日、公共假日或烈風警告日或黑色暴雨警告日（後兩者的定義與香港法例第1章《釋義及通則條例》第71(2)條的定義相同）之外的日子。
7. Manulife shall supply to the DGIP within seven (7) Working Days from the day it is made a copy of all agreements or contracts made between the Customer/Holding Company and Manulife and within seven (7) Working Days a copy of every amendment or variation to such agreements or contracts (but subject to Clause 9 of this Schedule below).  
就客戶/控股公司與宏利訂立協議或合約，宏利必須在訂立協議或合約後七(7)個工作天內向投資推廣署署長提交所有協議或合約的副本。每當協議或合約有修訂或更改(必須符合本附件第9段的規定)，宏利亦須於七(7)個工作天內向投資推廣署署長提交顯示修訂或更改內容的文件副本。
8. The provisions set out in Clauses 1 to 9 of this Schedule shall prevail over any other provisions of this Agreement between the Customer/Holding Company and Manulife in the event of any conflict or inconsistency between them.  
本附件第1條至第9條中所載的條文如與客戶/控股公司和宏利之間所訂立的本合約的條文有任何抵觸或不一致之處，一概以本附件第1條至第9條中所載的條文為準。
9. The provisions in this Schedule shall not be altered without the written consent of the DGIP.  
未經投資推廣署署長的書面同意，本附件的條文不得更改。